

SUPREME COURT OF THE STATE OF NEW YORK  
COUNTY OF KINGS

Index No.:

-----X  
CRAIG MILLINGTON RAGLAND,

Date Filed:

*Plaintiff,*

**SUMMONS**

- against -

Plaintiff designates  
Kings County  
as the place of trial.

THE CITY OF NEW YORK, NEW YORK CITY POLICE  
DEPARTMENT, DETECTIVE MARC WHIRL  
(Shield #9027), POLICE OFFICER JOSEPH JACOBSEN  
(Shield# 23247), and JOHN DOE(S) #1-5, POLICE  
OFFICERS FROM THE 75<sup>th</sup> PRECINCT,

The basis of venue is:  
Place of Occurrence

*Defendants,*

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**To the above-named Defendants:**

**You are hereby summoned** to answer the complaint in this action, and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance on the Plaintiff's attorneys within twenty days after the service of this summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: Bronx, New York  
December 1, 2022

TO:

Yours, etc.,

City of New York  
100 Church Street,  
New York, New York 10007

**MEIROWITZ & WASSERBERG, LLP**

New York City Police Department  
1 Police Plaza  
New York, NY 10007

ss/ **Laurita Rodriguez**

Detective Marc Whirl (Shield #9027)  
1 Police Plaza  
New York, NY 10007

\_\_\_\_\_  
LAURITA RODRIGUEZ, ESQ.,  
Attorneys for Plaintiff  
332 E. 149<sup>th</sup> Street, Suite 201  
Bronx, New York 10451  
(646) 661-1221

Police Officer Joseph Jacobsen (Shield# 23247)  
1 Police Plaza  
New York, NY 10007

SUPREME COURT OF THE STATE OF NEW YORK  
COUNTY OF KINGS

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CRAIG MILLINGTON RAGLAND,

*Plaintiff,*

- against -

Index No.:

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VERIFIED  
COMPLAINT

THE CITY OF NEW YORK, NEW YORK CITY POLICE  
DEPARTMENT, DETECTIVE MARC WHIRL  
(Shield #9027), POLICE OFFICER JOSEPH JACOBSEN  
(Shield# 23247), and JOHN DOE(S) #1-5, POLICE  
OFFICERS FROM THE 75<sup>th</sup> PRECINCT,

*Defendants.*

-----X

Plaintiff, by his attorneys, MEIROWITZ & WASSERBERG, LLP complaining of the  
Defendant, respectfully sets forth and alleges, as follows:

### **PRELIMINARY STATEMENT**

1. This is a civil rights action to recover money damages arising out of defendants' violation of Plaintiff's rights as secured by the Civil Rights Act, 42 U.S.C. Sections 1983 and 1988, and of rights secured by the Fourth, Fifth, and Fourteenth Amendments to the United States Constitution. On June 4, 2021, at approximately 9:32 P.M., Plaintiff was a passenger in a vehicle at the intersection of Georgia Avenue and Blake Avenue in Kings County, New York when defendant NYPD Officers unlawfully stopped, questioned, searched, and falsely arrested Plaintiff without probable cause or legal justification. In addition, Plaintiff suffered mental and emotional injury. Plaintiff was unlawfully imprisoned by defendants for approximately twenty-four (24) hours before being released. All charges against Plaintiff were dismissed on April 13, 2022. Plaintiff was deprived of his Federal Constitutional rights when the individual defendants unlawfully stopped, questioned, frisked, searched, confined, falsely arrested, falsely imprisoned,

and denied his right to due process and a fair trial in violation of the Fourth, Fifth and Fourteenth Amendments to the United States Constitution.

### **CONDITIONS PRECEDENT TO SUIT**

2. That prior to the institution of this action, a Notice of Claim was filed and served upon defendants within 90 (days) after the claim herein accrued.

3. That at least 30 days have elapsed since the service of such Notice of Claim and adjustment of payment thereof has been neglected or refused.

4. That on August 2, 2022, Plaintiff testified at a statutory hearing, pursuant to General Municipal Law Section 50-h.

5. That this action is being commenced within one year and ninety days after the causes of action herein accrued.

### **PARTIES**

6. Plaintiff, CRAIG MILLINGTON RAGLAND is a resident of the state of New York.

7. That at all times hereinafter mentioned, defendant, THE CITY OF NEW YORK (hereinafter "CITY"), was and is a municipal corporation duly organized and existing by virtue of the laws of the State of New York.

8. That at all times herein mentioned, defendant, CITY operated, maintained, managed, supervised, and controlled a police department as part of and in conjunction with its municipal functions.

9. That at all times herein mentioned, defendant, DETECTIVE MARC WHIRL SHIELD #9027 (hereinafter "DET. WHIRL"), was and is a detective of the defendant, CITY, was acting within the course and scope of his employment with defendant, NEW YORK CITY

POLICE DEPARTMENT (hereinafter “NYPD”) and was acting under the color of law.

10. That at all times herein mentioned, defendant, POLICE OFFICER JOSEPH JACOBSEN Shield #23247, (hereinafter “P.O. JACOBSEN”), was and is a police officer of the defendant, CITY, was acting within the course and scope of his employment with the defendant, NYPD and was acting under the color of law.

11. That at all times herein mentioned, JOHN DOE(S) #1-5, POLICE OFFICERS FROM THE 75<sup>th</sup> PRECINCT, (hereinafter “P.O. JOHN DOES #1-5”), are fictitious names intended to designate NYPD officers involved in the arrest of Plaintiff, and said Defendants were and are police officers of defendant, CITY, were acting within the scope of their employment with the NYPD and were acting under the color of law.

#### **STATEMENT OF FACTS**

12. On June 4, 2021, at approximately 9:32 P.M., Plaintiff, CRAIG MILLINGTON RAGLAND, was a passenger in a lawfully parked vehicle at the northeast corner of Georgia Avenue and Black Avenue in Kings County, New York when defendant NYPD Officers unlawfully stopped, questioned, searched, and falsely arrested Plaintiff without probable cause or legal justification.

13. At the above time and place, Plaintiff did not possess weapons, drugs, drug paraphernalia, or any contraband whatsoever.

14. For no reason at all, Defendant Officers stopped a vehicle in which Plaintiff was a backseat passenger.

15. Defendant Officers then, without any cause or reason, ordered Plaintiff to exit the vehicle.

16. Plaintiff complied with Defendant Officers’ demands and exited the vehicle.

17. Defendant Officers then performed an illegal search of Plaintiff's person, without any basis or reason to do so.

18. Defendant Officers then demanded that Plaintiff stand at or near the trunk of the vehicle.

19. Plaintiff complied with Defendant Officers' orders and stood behind the trunk of the vehicle.

20. At no time did Plaintiff give Defendant Officers consent to search the vehicle.

21. At no time did the owner of the vehicle give Defendant Officers consent to search the vehicle.

22. At no point did any occupant of the vehicle give consent for Defendant Police Officers to search the vehicle.

23. Without and lawful basis or consent, Defendant Officers performed an illegal search of the vehicle.

24. Defendant Officers claimed to have found a firearm inside the vehicle.

25. Plaintiff did not possess a firearm or any other contraband whatsoever.

26. Defendant Officer's search of Plaintiff yielded no firearm or any other contraband.

27. Without sufficient probable cause, Defendant Officers then grabbed client out of the vehicle and handcuffed him.

28. Plaintiff was transported to the 75<sup>th</sup> Police Precinct, located at 1000 Sutter Avenue, Brooklyn, New York 11208.

29. At the 75<sup>th</sup> Police Precinct, Plaintiff was searched again without probable cause, and was subsequently fingerprinted and photographed by Defendant Officers.

30. On or about June 5, 2021, Defendant Officers submitted false information to the Kings County District Attorney's Office, resulting in Plaintiff's unlawful prosecution.

31. Specifically, Defendant Officers falsely informed prosecutors in the Early Case Assessment Bureau of the Kings County District Attorney's Office that at the time of his unlawful arrest, Plaintiff had been in possession of a firearm.

32. Approximately twelve (12) hours after his illegal arrest, Plaintiff was then taken by defendant NYPD Officers to Kings County central booking.

33. Plaintiff was held in custody at central booking for an additional twelve (12) hours, awaiting arraignment.

34. Plaintiff was then brought before a judge of the Criminal Court of the City of New York, Kings County and formally charged via criminal complaint under Docket No. CR-014031-21KN, with the following offenses: Criminal Possession of a Weapon in the Second Degree (NY P.L. § 265.03 (3)); Criminal Possession of a Weapon in the Third Degree (NY P.L. § 265.02 (8)); Criminal Possession of a Firearm (NY P.L. § 265.01-B (1)); Criminal Possession of a Weapon in the Fourth Degree (NY P.L. § 265.01 (1)); and Possession of Pistol Ammunition (NYC A.C. § 10-131 (I) (3)).

35. That following his arrest Plaintiff was imprisoned without his consent without justification at various locations, until his release on his own recognizance, approximately twenty-four (24) hours after his arrest and given a future court date.

36. On April 13, 2022, the criminal case against Plaintiff was dismissed and sealed.

37. Plaintiff attended multiple court dates from the time of arraignment to the date of dismissal.

38. At no time relevant herein did Plaintiff commit a crime or violate the law in any way, nor did the police officers have an objective reason to accuse Plaintiff of committing a

crime or violating the law in any way.

39. At no point did Defendant Officers recover any drugs, weapons, graffiti instruments, or other illegal contraband from Plaintiff or from a location that was in Plaintiff's possession, custody, or control.

40. Nevertheless, Plaintiff was unlawfully arrested and handcuffed by Defendant Officers without legal justification or probable cause, unlawfully fingerprinted, photographed and searched, and unlawfully detained.

41. Some of the Defendant Officers observed the violation of Plaintiff's rights under the Constitution of the United States and New York State Law and did nothing to prevent their fellow officers from unjustifiably searching, seizing, using excessive force, falsely arresting and imprisoning, humiliating, and denying Plaintiff the right to due process and a fair trial.

42. That as a result of the aforementioned actions of defendants, plaintiff was deprived of his liberty, was subjected to great indignity, humiliation, severe pain and great distress of mind and body and was help up to scorn and ridicule, was injured in his character and reputation, was prevented from attending his usual business and avocation, was injured in his reputation in the community and said plaintiff has been otherwise damaged.

43. That all of the causes of action asserted herein fall within one or more of the exceptions set forth in CPLR §1602.

**FIRST CAUSE OF ACTION**

False Arrest/Imprisonment

44. Plaintiff, CRAIG MILLINGTON RAGLAND, repeats and realleges all of the allegations contained in the proceeding paragraphs with the same force and effect as if set forth more fully herein.

45. That as a result of the foregoing, plaintiff CRAIG MILLINGTON RAGLAND was without just cause or provocation, maliciously, recklessly, and/or intentionally arrested and

imprisoned without probable cause and/or without warrant resulting in an unlawful confinement, deprivation of liberty and other serious emotional injury to plaintiff.

46. That Defendant Officers jointly and severally in their capacity as police officers, wrongfully touched, grabbed, handcuffed, and seized Plaintiff without his consent and said actions were not privileged by law.

47. That the aforesaid actions by Defendants constitute a false arrest and false imprisonment in violation of Plaintiff's civil rights as protected by the United States Constitution and applicable Federal and New York State statutes.

48. That as a result of the aforementioned actions of Defendants, Plaintiff was deprived of his liberty, was subjected to great indignity, humiliation, severe pain and great distress of mind and body and was held up to scorn and ridicule, was injured in his character and reputation, was prevented from attending his usual business and avocation, was injured in his reputation in the community and said plaintiff has been otherwise damaged.

**SECOND CAUSE OF ACTION**  
Violation of Fourth Amendment Rights:  
Unlawful Search

49. Plaintiff, CRAIG MILLINGTON RAGLAND, repeats and realleges all of the allegations contained in the proceeding paragraphs with the same force and effect as if set forth more fully herein.

50. The individually named Defendant Detective/Officers, while acting in concert and within the scope of their authority, caused Plaintiff to be unlawfully searched without reasonable suspicion and/or probable cause, in violation of Plaintiff's right to be free of an unreasonable search under the Fourth Amendment of the Constitution of the United States.



51. That as a result of the aforementioned actions of the Defendants , Plaintiff was deprived of his liberty, was subjected to great indignity, humiliation, severe pain and great distress of mind and body and was help up to scorn and ridicule, was injured in his character and reputation, was prevented from attending his usual business and avocation, was injured in his reputation in the community and said plaintiff has been otherwise damaged.

**THIRD CAUSE OF ACTION**

*42 U.S.C §1983 violations of Fourth and Fourteenth Amendments*

52. Plaintiff, CRAIG MILLINGTON RAGLAND, repeats and realleges all of the allegations contained in the proceeding paragraphs with the same force and effect as if set forth more fully herein.

53. That Defendant Detective/Officers, under the color of law and with the indicia of authority of Defendant CITY and Defendant NYPD, violated Plaintiff's constitutional rights to be free from the unreasonable and unnecessary use of excessive force, unreasonable seizures, and to bodily integrity.

54. That Defendants are also liable under 42 U.S.C §1983 for failing to intervene to prevent the actions of the defendant police officer who assaulted plaintiff during his unlawful arrest.

55. That the aforementioned actions of defendants deprived the plaintiff of the following rights under the United States Constitution:

- a. Freedom of summary punishment;
- b. Freedom of cruel and inhuman punishment;
- c. Freedom from illegal search and seizure; and
- d. Freedom from false arrest;

56. That defendant subjected Plaintiff to such deprivations, either in a malicious or reckless disregard of the Plaintiff's rights or with deliberate indifference to those rights secured by the Fourth and Fourteenth Amendments of the United States Constitution, in violation of 42 U.S.C §1983, for which the individual defendants are liable.

57. That each of the Defendants' actions directly and proximately caused Plaintiff to suffer severe and permanent injuries of a physical and psychological nature.

58. That as a result of the aforementioned actions of the Defendants, Plaintiff was deprived of his liberty, was subjected to great indignity, humiliation, severe pain and great distress of mind and body and was held up to scorn and ridicule, was injured in his character and reputation, was prevented from attending his usual business and avocation, was injured in his reputation in the community and said plaintiff has been otherwise damaged.

**FOURTH CAUSE OF ACTION**

*Violation of Fifth and Fourteenth Amendment Rights:  
Denial of Right to Fair Trial/Due Process*

59. Plaintiff, CRAIG MILLINGTON RAGLAND, repeats and realleges all of the allegations contained in the proceeding paragraphs with the same force and effect as if set forth more fully herein.

60. Defendants, individually and collectively, manufactured and/or withheld false evidence and forwarded this false evidence to prosecutors in the Kings County District Attorney's Office.

61. Defendants filled out false and misleading police reports and forwarded them to prosecutors in the Kings County District Attorney's Office.

62. Defendants signed false and misleading criminal court affidavits and forwarded them to prosecutors in the Kings County District Attorney's Office.

63. In withholding/creating false evidence against Plaintiff, and in withholding/providing information with respect thereto, Defendants violated Plaintiff's right to a fair trial and to due process under the Due Process Clauses of the Fifth and Fourteenth Amendments to the Constitution of the United States.

64. That as a result of the aforementioned actions of the Defendants, Plaintiff was deprived of his liberty, was subjected to great indignity, humiliation, severe pain and great distress of mind and body and was help up to scorn and ridicule, was injured in his character and reputation, was prevented from attending his usual business and avocation, was injured in his reputation in the community and said plaintiff has been otherwise damaged.

**FIFTH CAUSE OF ACTION**

*Assault and Battery under New York State Law.*

65. Plaintiff, CRAIG MILLINGTON RAGLAND, repeats and realleges all of the allegations contained in the proceeding paragraphs with the same force and effect as if set forth more fully herein.

66. At all relevant times, Defendants caused Plaintiff to fear for his physical well-being and safety and placed him in apprehension of immediate harmful and/or offensive touching.

67. Defendants engaged in and subjected Plaintiff to immediate harmful or offensive touching and battered him without his consent or justification.

68. Due to the intentional, willful, and unlawful acts of Defendants, Plaintiff suffered damages.

69. Defendant CITY, as employer of the individual Defendants, is responsible for their wrongdoing under the doctrine of respondeat superior.

70. That as a result of the aforementioned actions of the Defendants, Plaintiff was deprived of his liberty, was subjected to great indignity, humiliation, severe pain and great distress of mind and body and was help up to scorn and ridicule, was injured in his character and reputation, was prevented from attending his usual business and avocation, was injured in his reputation in the community and said plaintiff has been otherwise damaged.

**FIFTH CAUSE OF ACTION**  
*Malicious Prosecution*

71. Plaintiff, CRAIG MILLINGTON RAGLAND, repeats and realleges all of the allegations contained in the proceeding paragraphs with the same force and effect as if set forth more fully herein.

72. The acts and conduct of the Defendants constitute malicious prosecution under the United States Constitution.

73. Defendants commenced and continued a criminal proceeding against Plaintiff.

74. There was actual malice and an absence of probable cause for the criminal proceeding against Plaintiff and for each of the charges for which they were prosecuted.

75. The prosecution and criminal proceedings terminated in Plaintiff's favor on the aforementioned dates.

**SIXTH CAUSE OF ACTION**  
*Failure to Intervene*

75. Plaintiff, CRAIG MILLINGTON RAGLAND, repeats and realleges all of the allegations contained in the proceeding paragraphs with the same force and effect as if set forth more fully herein.

76. The Defendants that did not physically touch Plaintiff but were present when other police officers violated Plaintiff's constitutional rights, had an affirmative duty to intervene on behalf of Plaintiff, whose constitutional rights were being violated in their presence by other police officers.

77. Defendants failed to intervene to prevent the unlawful conduct described herein.

78. As a result of the foregoing, Plaintiff suffered significant injuries to his wrists, his liberty was restricted for an extended period of time, he was put in fear of his safety, and he was humiliated and subject to other physical constraints.

79. As a direct and proximate result of such acts, defendants deprived Plaintiff of his rights under the United States Constitution.

80. As a result of the aforementioned conduct of defendants, Plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

**SEVENTH CAUSE OF ACTION**  
*Negligence, Negligent Hiring and Supervision*

81. Plaintiff, CRAIG MILLINGTON RAGLAND, repeats and realleges all of the allegations contained in the proceeding paragraphs with the same force and effect as if set forth more fully herein.

82. That the Defendant Officers, acting within the scope of their employment, negligently discharged their duties by failing to exercise a reasonable degree of care, and thereby caused Plaintiff to sustain the injuries and deprivations aforementioned.

83. That the acts of negligence of Defendant Officers include, but are not limited to, forcibly detaining Plaintiff, failing to prevent clear violations of constitutional rights, and other conduct that was improper under the circumstances.

84. That the aforesaid actions by Defendant Officers violated the Patrol Guide, including but not limited to, Arrest Procedure policies.

85. That Defendant CITY is responsible for the negligence of its officers committed within the scope of their employment.

86. That the Defendant CITY was negligent in that prior to and at the time of the acts complained of herein, due to prior history of Defendant Officers, Defendant CITY, knew or should have known of the bad disposition of Defendant Officers or had knowledge of facts that would put a reasonably prudent employer on inquiry concerning their bad disposition and the fact that these officers were not suitable to be hired and employed by Defendant CITY and that due to their lack of training, these officers should have had adequate supervision so that they would not arrest and falsely imprison innocent individuals.

87. That the Defendant CITY has grossly failed to train and adequately supervise its police officers in the fundamental law of arrest, search and seizure especially when its police officers are not in possession of a court authorized arrest and a search warrant and where individual, especially as here, has not committed a crime and has not resisted arrest, that it police officers should only use reasonable force to effectuate an arrest and the arrest should be based on probable cause.

88. That the Defendant City is negligent due to its failure to implement a policy with its police department or actively enforce the law, if any of the following are lacking:

1. Probable cause must be present before an individual such as the plaintiff herein can be arrest.

2. An individual who sustains physical injury at the hands of the police during the arrest process should receive prompt medical attention.

89. That the aforementioned actions by Defendants directly and proximately caused severe physical and psychological injuries to Plaintiff.

WHEREFORE, the Plaintiff, CRAIG MILLINGTON RAGLAND, demands judgment against the Defendants, together with the cost and disbursements of this action in the amount of damages greater than the jurisdictional limit of any lower court which would otherwise have jurisdiction. Additionally, Plaintiff demands in respect of all causes of action, punitive damages and attorney fees pursuant to 42 U.S.C §1988.

Dated: Bronx, New York  
December 2, 2022

MEIROWITZ & WASSERBERG, LLP

/s/ **Laurita Rodriguez**

By:

\_\_\_\_\_  
LAURITA RODRIGUEZ, ESQ.  
Attorneys for Plaintiff  
332 E. 149<sup>th</sup> Street, Suite 201  
Bronx, New York 10451  
(646) 661-1221

**ATTORNEY'S VERIFICATION**

LAURITA RODRIGUEZ, an attorney duly admitted to practice law before the Courts of the State of New York, hereby affirms the truth of the following statements under the penalties of perjury:

Affirmant is the attorney of record for plaintiff **CRAIG MILLINGTON RAGLAND** in

the within action.

Affirmant has read the foregoing **VERIFIED COMPLAINT** and knows the contents thereof.

The same is true to affirmant's own knowledge, except as to the matters therein stated to be alleged upon information and belief, and as to those matters, affirmant believes them to be true.

The reason this verification is made by affirmant and not by Plaintiff is because Plaintiff does not reside within the County wherein your affirmant maintains her office.

The ground of affirmant's belief as to all matters not stated upon affirmant's own knowledge are as follows: investigation and information received by affirmant in the course of her duties as attorney for the said Plaintiff.

Dated: Bronx, New York  
December 2, 2022

/s/ **Laurita Rodriguez**

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LAURITA RODRIGUEZ  
*Attorney for Plaintiff*

SUPREME COURT OF THE STATE OF NEW YORK  
COUNTY OF KINGS

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CRAIG MILINGTON RAGLAND

*Plaintiff,*

-against-

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(Shield# 23247), and JOHN DOE(S) #1-5, POLICE  
OFFICERS FROM THE 75th PRECINCT,  
*Defendants.*

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## SUMMONS & VERIFIED COMPLAINT

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MEIROWITZ & WASSERBERG, LLP  
*Attorney for Plaintiff*  
332 E. 149<sup>th</sup> Street, Suite 201  
Bronx, New York 10017  
(212) 897-1988

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*Pursuant to 22 NYCRR 130-1.1, the undersigned, an attorney admitted to practice in the courts of New York State, certifies that, upon information and belief and reasonable inquiry, the contentions contained in the annexed document are not frivolous.*

*Dated:* Bronx, New York  
December 2, 2022

*Signed:*       /s/ **Laurita Rodriguez**        
*Laurita Rodriguez, Attorney for Plaintiff*

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*Service of a copy the within Summons & Verified Complaint is hereby admitted.*

*Dated:* \_\_\_\_\_